

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

11 CIV 7769

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MARQUIS TOBIAS,

Plaintiff,

-against-

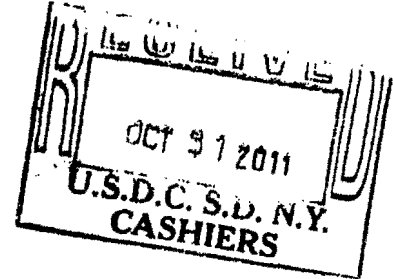
Jury Demanded

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER
JOHN DOE #1, POLICE OFFICER JOHN
DOE #2 and SGT. JAMES DOE, the names of
the Police Officers being fictitious and
presently unknown to plaintiffs,
but intended to represent the individual Police
Officers and Superior Police Officers involved as
set forth below,

Case No.

11CV7769



Defendants.
-----X

Plaintiff, by his attorneys, Harry I. Katz, P.C., as and for his Verified Complaint,
respectfully alleges as follows:

PARTIES

1. Plaintiff is a resident of the State of Michigan.
2. Upon information and belief, at all times herein mentioned, defendant, City of New York was a municipal corporate authority authorized, organized and existing under the laws of the State of New York.
3. Upon information and belief, at all times herein mentioned, defendants, Police Officer John Doe #1 and Police Officer John Doe #2, were employees of the defendant, City of New York, in the City, County and State of New York.

4. Upon information and belief, at all times herein mentioned, defendant, City of New York, operated and controlled a police department and employed servants, agents and employees.

JURISDICTION

5. The amount in controversy herein exceeds the amount of \$75,000.00, exclusive of costs and interest.

6. This Court has jurisdiction in this matter under 28 U.S.C. § 1332(2).

VENUE

7. Venue is proper in this District under 28 U.S.C. § 1391(a)(2).

8. Upon information and belief, at all times herein mentioned, defendant, City of New York, operated and controlled a police department and employed servants, agents and employees, including police officers and superior police officers.

9. Upon information and belief, at all times herein, mentioned, defendant¹ City of New York, operated and controlled a police department and employed servants, agents and employees, including Police Officer John Doe #1 and Police Officer John Doe #2, the names of the Police Officers being fictitious and presently unknown to plaintiff, but intended to represent individual Police Officers involved as set forth herein.

¹ As used herein, the term "defendant" refers individually to each Police Officer Defendant and individually to the City of New York unless otherwise stated.

10. Upon information and belief, at all times herein mentioned, the Police defendants were employed as Police Officers by the City of New York.

11. On August 9, 2011, a Notice of Claim was filed with the Comptroller of the City of New York on behalf of the plaintiff.

12. The plaintiff has duly complied with the pre-requisites for the commencement of an action of this kind by duly serving upon the Comptroller of the City of New York, duly verified Notices of Claim and Intention to Sue, and that more than thirty (30) days have expired since service of same, and that the defendant has failed, refused or neglected to adjust the said claims, and these claims remain unadjusted, and unpaid, and that this action is being commenced within the time permitted by law.

13. On September 19, 2011, a 50H hearing was held at the the law office of Jeffrey Samel, 150 Broadway, New York, NY.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FALSE ARREST AND UNLAWFUL IMPRISONMENT

14. Plaintiff repeats each allegation above as though fully set forth herein at length.

15. On May 19, 2011, defendant arrested the plaintiff.

16. On May 19, 2011, at approximately 11:00 p.m., plaintiff was lawfully at or near 119th Street and Lexington Avenue, City, County and State of New York.

17. On May 19, 2011, defendant detained the plaintiff.

18. On May 19, 2011, defendant took plaintiff to the 25th Police Precinct, in the County, City and State of New York.

19. On May 19, 2011, defendant took the plaintiff in custody to a detention facility at the 25th Precinct, County, City and State of New York.

20. On May 19, 2011, plaintiff was taken to the detention facility at 100 Centre Street, City, County and State of New York.

21. On the above-mentioned date, plaintiff was fingerprinted.

22. On the above mentioned date, plaintiff was photographed.

23. On the above mentioned date, plaintiff was interrogated.

24. That said arrest and detention were without probable cause.

25. Plaintiff was charged with a crime.

26. Plaintiff was charged with the crime of "unlawful assembly".

27. On the above-mentioned date, defendant seized plaintiff.

28. On the above-mentioned date, defendant seized plaintiff with no probable cause to believe he had committed any violation of the law.

29. On the above mentioned date, the defendant searched plaintiff.

30. On the above mentioned date, the defendant searched plaintiff.

31. On the above mentioned date, defendant strip searched the plaintiff.

32. Plaintiff in no way contributed to the aforesaid occurrence by any act of provocation on his part.

33. Plaintiff in no way contributed to the aforesaid occurrence by any act of negligence on his part.

34. Plaintiff in no way contributed to the aforesaid occurrence by any act of resistance on his part.

35. Upon information and belief, at all times herein mentioned, the Police defendants were acting in the scope of their employment with the City of New York.

36. Upon information and belief, at all times herein mentioned, certain of the Police defendants were supervisors.

37. Upon information and belief, at all times herein mentioned, the Police defendants were acting in their official capacity as police officers.

38. Upon information and belief, at all times herein mentioned, the defendant was acting in his/her official capacity as a police officer.

39. The defendant, City of New York, is responsible for the acts of its servants, agents and/or employees in the discharge of their duties.

40. The defendant, City of New York, is responsible for the acts of its servants, agents and/or employees in the commission of torts.

41. Upon information and belief, on July 14, 2011, all the charges against the plaintiff were dismissed.

42. By reason of the foregoing, plaintiff suffered mental anguish, embarrassment, harassment, legal fees, loss of reputation and loss of earnings, both present and future, all to his damage in an amount which exceeds the jurisdictional limitations of all courts of inferior jurisdiction which would otherwise have jurisdiction hereof; plaintiff further seeks punitive and exemplary damages and is entitled to punitive and exemplary damages.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR ASSAULT AND BATTERY

43. Plaintiffs repeat each allegation above as though fully set forth herein at length.

44. On the above mentioned date, defendant grabbed plaintiff.

45. On the above mentioned date, defendant stripped-searched the plaintiff.

46. On the above mentioned date, defendant harassed the plaintiff.

47. On the above-mentioned date, defendant used force against the plaintiff.

48. On the above-mentioned date, defendant physically abused the plaintiff.

49. On the above-mentioned date, defendant mentally abused the plaintiff.

50. By reason of the foregoing, plaintiff s suffered psychological and emotional injury with attendant pain and suffering; has suffered and will in the future suffer psychological and emotional injury, has been and will in the future be deprived of the substantial enjoyment of life, all to his detriment in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and is further entitled to punitive and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR NEGLIGENCE

51. Plaintiff repeats each allegation above as though fully set forth herein at length.

52. Upon information and belief, at all times herein mentioned, Police Officer John Doe #1 and Police Officer John Doe #2 were under the supervision of Sergeant James Doe.

53. Sergeant James Doe failed to stop the acts of his subordinates.

54. Sergeant James Doe was negligent in his supervision of the other Police defendants.

55. The foregoing was caused by the negligence of the defendants, their servants, agents and/or employees, in failing to supervise and/or adequately supervise; in failing to train and/or adequately train their police officers and superior police officers; in failing to have a sufficient number of police officers and/or superior police officers present; in failing

to take steps to avoid this occurrence; in failing to promulgate and/or enforce reasonable rules and regulations dealing with use of force and/or dealings with civilians not involved in criminal activity in the place where a police operation is in progress; in failing to monitor and/or adequately monitor the activities of the police officers involved; in negligently hiring its personnel; in failing to take steps to avoid this occurrence; and were otherwise negligent.

56. By reason of the foregoing, plaintiff suffered psychological and emotional injury; has suffered and will in the future suffer psychological and emotional injury; has been and will in the future be deprived of the substantial enjoyment of life, all to his detriment in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and is further entitled to punitive and exemplary damages.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR
VIOLATION OF FEDERALLY PROTECTED CIVIL RIGHTS
42 U.S.C. § 1983

57. Plaintiff repeats each allegation above as though fully set forth herein at length.

58. Plaintiff is a citizen of the United States.

59. Plaintiff was, at all times herein mentioned, within the jurisdiction of the United States.

60. Upon information and belief, the aforementioned conduct of the Police defendants was condoned by the City of New York.

61. Upon information and belief, the aforementioned conduct of the Police defendants was approved by the City of New York.

62. Upon information and belief, the aforementioned conduct of the Police defendants was in accordance with the custom and practice of the City of New York by its Police Department.

63. At all times herein mentioned, defendant acted under color of the laws of the State of New York.

64. At all times herein mentioned, defendant acted under color of the statutes, ordinances, regulations, customs and/or usages of the State of New York.

65. Plaintiff was thereby deprived of his rights under the United States Constitution.

66. Plaintiff was thereby deprived of his rights under the United States Constitution and laws.

67. Plaintiff was thereby deprived of his rights under the Fourth Amendment to the United States Constitution.

68. Plaintiff was thereby deprived of his rights under the Fifth Amendment to the United States Constitution.

69. Plaintiff was thereby deprived of his rights under the Fourteenth Amendment to the United States Constitution.

70. Plaintiff was thereby deprived of his penumbral rights under the United States Constitution.

71. Defendant thereby violated 42 U.S.C. § 1983.

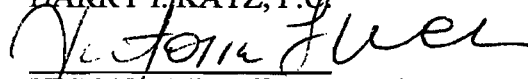
73. As a result of the foregoing, plaintiff was deprived of the rights, privileges and immunities secured by the Constitution and the laws of the United States; suffered physical and emotional injury, and incurred medical and legal expenses, all to his damage in an amount which exceeds the jurisdictional limitations of all courts of inferior jurisdiction which would otherwise have jurisdiction hereof and punitive and exemplary damages and is further entitled to reasonable attorney's fees under 42 U.S.C. § 1988.

WHEREFORE, plaintiff demands judgment in each of his four causes of action in an amount which exceeds the jurisdictional limitations of all courts of inferior jurisdiction which would otherwise have jurisdiction hereof, together with his legal fees in defense of his criminal action and together with attorney's fees in this action as provided by statute; together with the costs and disbursements of this action.

Dated: Fresh Meadows, New York
October 11, 2011

Yours, etc.,

HARRY I. KATZ, P.Q.


VICTORIA L. WEINMAN (vlw4041)
Attorney for Plaintiffs
61-25 Utopia Parkway
Fresh Meadows, NY 11365
(718) 463-3700

STATE OF NEW YORK)
)s.s.:
COUNTY OF QUEENS)

Marquis Tobias

being duly sworn deposes and says:

Deponent is the plaintiff in the within action and has read the foregoing

Summons & Complaint

and knows the contents thereof, that the same are true to deponent's own knowledge, except as to

the matters therein stated to be alleged on information and belief and as to those matters

deponent believes them to be true.

Marquis Tobias

Sworn to before me this 11th
day of November, 2002

Joann Evers
Notary Public

JOANN EVERS
Notary Public, State of New York
No. 01EV4988644
Qualified in Queens County
Commission Expires November 12, 2013

Case No. 11CV7769

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MARQUIS TOBIAS,

Plaintiff(s),

-against-

CITY OF NEW YORK, et al.,

Defendant(s).

CIVIL COVER SHEET
SUMMONS WITH NOTICE
COMPLAINT

HARRY I. KATZ, P.C.
Attorney for Plaintiff(s)
Office and Post Office Address, Telephone
61-25 Utopia Parkway
Fresh Meadows, New York 11365
(718) 463-3700
(718) 886-3410 (Fax)

To:
Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for